

SENATE No. 921

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to facilitate student financial assistance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>5/6/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>6/12/2025</i>

SENATE No. 921

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 921) of Joanne M. Comerford and Sal N. DiDomenico for legislation to facilitate student financial assistance and establish the FAFSA Trust Fund. Higher Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4269 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to facilitate student financial assistance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1D of Chapter 69 of the Massachusetts General Laws, as appearing
2 in the 2022 Official Edition, is hereby amended by inserting after clause (iii) the following
3 clause:-

4 (iv) (a) It is hereby declared to be the policy of the commonwealth to maximize federal
5 and state postsecondary financial aid options through the encouragement and requirement of
6 graduating students to submit the applicable application for federal and state financial aid.

7 Before graduating from high school, each student must submit a free application for
8 federal student aid, hereafter referred to as the FAFSA.

(b) A student is not required to comply with subsection (a) if: (1) the student's parent or guardian submits a signed form described in subsection (c) indicating that the parent or guardian authorizes the student to decline to complete and submit the financial aid application; or (2) the student signs and submits the form referenced in subsection (c) on the student's own behalf if the student is 18 years of age or older or legally emancipated; or (3) the student's school files the form referenced in subsection (c) to be approved by the school district, if the student has not reached 18 years of age.

(c) The department of elementary and secondary education shall develop, and all school districts shall adopt, 2 forms to be used for the purposes of subsection (b), as follows: A form to be signed by a parent/guardian, or by a student over 18 years of age or legally emancipated. This form shall be written in accessible language, translated into families' preferred languages, and require no personal information except for student and parent/guardian (if applicable) names and signatures. The form shall not require any information on citizenship status.

A form filed by the school district on behalf of a student under the age of 18 who is not legally emancipated. The form shall be signed by the principal of the student's school and shall include the following information: (a) attestation that the student meets all other graduation requirements; (b) attestation that the school has made a good faith effort to contact the family and to provide any support necessary to submit the FAFSA, including at least 3 personalized communications in the family's preferred language.

Prior to completion of high school, each school district shall ensure that every student complies with subsection (a) or (b) and must provide to each high school student and, if

applicable, their parent or guardian any support or assistance necessary to comply with this section.

(d) The commissioner shall provide guidance to districts related to the implementation of this section, including the distribution of information related to this requirement, reporting requirements for school districts and required communications to parents and guardians related to all financial aid options for high school students. Each district must annually report to the department of elementary and secondary education by September 30 the following: the number of students completing and submitting the free application for federal student aid; the number of students who received an exemption to this requirement through paragraph (iv) subsections (b)(1), (b)(2) and (b)(3) separately and in combination, provided further that this data be broken down by race, ethnicity, primary city or town of residence and such other categories that the department may determine.

SECTION 2.

Section 2. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the FAFSA Trust Fund. The fund shall be administered by the commissioner of elementary and secondary education. The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such as gifts, grants and donations to aid districts in supporting students, parents and guardians with Free Application for Federal Student Aid submission. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(b) Amounts credited to the fund may focus on underserved communities across the commonwealth, including those school districts with high concentrations of economically disadvantaged students, and may be expended, without further appropriation, by the commissioner for the following purposes: (i) to assist with the implementation and execution of section (a), including staff and administrator training; (ii) for the development of workshops and other support services and systems; and (iii) for the collaboration with stakeholder and community organizations to support students, parents, and guardians with Free Application for Federal Student Aid submission.

(c) Amounts received from private sources shall be approved by the commissioner of elementary and secondary education and subject to review before being deposited in the fund to ensure that pledged funds are not accompanied by conditions, explicit or implicit, on the implementation of FAFSA workshops or other programming that may be detrimental to students, parents, guardians, school districts, or that places limitations or restrictions on how funds can be used to support the implementation of this section. The review shall be made publicly available.

(d) Annually, not later than October 1, the commissioner shall report to the clerks of the house of representatives and senate, the joint committee on education and the house and senate committees on ways and means on the fund's activity. The report shall include, but not be limited to: (i) the source and amount of funds received; (ii) the amounts distributed and the purpose of expenditures from the fund, including but not limited to, funds expended to assist school districts in meeting the requirements in section (a); (iii) any grants provided to high schools and other stakeholder organizations; and (iv) anticipated revenue and expenditure projections for the next year.

74 SECTION 3. Section 1 of this act shall take effect on October 1, 2026.

75 SECTION 4. Section 2 of this act shall take effect October 1, 2025.